

Further, in *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035, the court pointed to several nonmutual terms, “including, most notably, the requirement that only the plaintiff arbitrate his claims against the defendant, in its determination that the agreement was substantively unconscionable.” The comparison is apt. Here, the CSA carves out claims only Hyundai would have as exceptions to the agreement. (See Rao Decl. Ex. B at ¶14(C)(a) [“However, any dispute you or we may have relating to copyrights or other intellectual property shall not be governed by this agreement to arbitrate.”]; see also *Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 243-244 [finding one-sided carve-outs to be substantively unconscionable].)

Both the shortened one-year statute of limitations provision, as well as the one-sided carve out provisions of the CSA are substantively unconscionable.

As to fees, Hyundai essentially argues plaintiff’s argument is “frivolous” and a “misinterpretation,” but provides no support for reading the agreement to mean anything other than what plaintiff asserts it means. Hyundai appears to concede that its recovery of fees would be more limited than for plaintiff pursuant to Song-Beverly statutes. In any event, the CSA limits Hyundai’s liability to \$500 or the total amount paid for connected services during the 12 months preceding a claim, “UNDER ANY THEORY (INCLUDING BUT NOT LIMITED TO FRAUD, MISREPRESENTATION, BREACH OF CONTRACT, PERSONAL INJURY, OR PRODUCTS LIABILITY).” (Rao Decl., Ex. B, ¶11 [“Limitations of Liability”], §(E) [“THE MAXIMUM AGGREGATE LIABILITY OF HYUNDAI”].)

These provisions, collectively relating to fees, are substantively unconscionable.

The CSA is accordingly unconscionable and incapable of severance.

13. 9:00 AM CASE NUMBER: MSC22-00422
CASE NAME: BRADSHAW VS FRANCO HERRERA, IOX, LLC
***HEARING ON MOTION IN RE: STRIKE DEFENDANTS EXPERTS WHO WERE IMPROPERLY DISCLOSED AS SUPPLEMENTAL EXPERTS**
FILED BY: BRADSHAW, DANIEL
TENTATIVE RULING:

This is a trial motion, so the hearing is **continued** to the Issue Conference date.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C25-00500
CASE NAME: SHAMIKA MUHAMMAD VS. COLD AIR REFRIGERATION, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES AND SANCTIONS**
FILED BY: COLD AIR REFRIGERATION, INC.
TENTATIVE RULING:

Defendant Cold Air moves to compel response and production of documents on four specific requests, all generally concerned with agreements that plaintiff may have with medical providers concerning payment of medical bills for treatment for the injuries alleged in this lawsuit. The motion